

24NNCV01259 24NNCV01259

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Case Number: 24NNCV01259 Hearing Date: August 14, 2026 Dept: D

TENTATIVE RULING

Calendar: 6

Date: August 14, 2026

Case No: 24NNCV01259 Trial Date: September 28, 2026

Case Name: Cruz v. Fitts, et al.

MOTION TO DEEM RFAS ADMITTED; MOTION FOR CONTEMPT OF ORDER AND TERMINATING SANCTIONS

[CCP §§ 2033.280, 2023.030]

Moving Party: Defendant, Nicholas Robert Fitts

Responding Party: Plaintiff, Heennssy Cruz [Unopposed]

RELIEF REQUESTED:

Compel responses to requests for admission and request for sanctions.

Impose monetary sanctions, or in the alternative, terminating sanctions.

CAUSES OF ACTION: from Complaint

1) Motor Vehicle

CHRONOLOGY:

Discovery Served: March 30, 2026

Responses Served: No responses served

Motion Served: May 15, 2026

SUMMARY OF FACTS:

This action arises from an alleged motor vehicle accident. Plaintiff alleges that on May 14, 2022, on or about the I-210 westbound freeway near Colorado Boulevard in Arcadia, CA 91006, Defendants acted negligently, causing injuries and damages to Plaintiff.

MOTION TO DEEM RFAS ADMITTED:

A motion to compel an initial response can be made on the ground that a party did not serve a timely response to interrogatories or a demand to produce. (CCP §§ 2030.290, subd. (a) [interrogatories], 2031.300, subd. (a) [demand to produce]; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.) The discovering party can also make a motion to deem as admitted any unanswered requests for admission or any requests answered in a late or unverified response. (CCP § 2033.280, subd. (b); CCP, § 2033.240, subd. (a) [RFA responses must be signed by responding party under oath]; Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636 [unsworn response to RFAs is treated like no response].) These requests are not automatically deemed admitted; the discovering party must make the motion. (CCP § 2033.280, subd. (b).)

To establish this ground, a movant must show:

- (1) Proper service (CCP §§ 2030.080, subd. (a) [interrogatories], 2031.040 [demand to produce]; § 2033.070 [requests for admission])
- (2) Expiration of the deadline for the initial response 30 days after service or on date agreed to by parties (CCP §§ 2030.260, subds. (a), (b) [interrogatories], 2031.260, subds. (a), (b) [demand to produce] 2033.250, subds. (a), (b) [requests for admission]); and
- (3) No timely response. (CCP §§ 2030.290 [interrogatories], 2031.300 [demand to produce] § 2033.280, subd. (b) [requests for admission])

A court must deny a motion to compel initial discovery where the discovery sought is outside the scope of discovery. (CBS, Inc. v. Superior Court (1968) 263 Cal.App.2d 12, 19; CCP § 2017.010 [scope of discovery].)

The requests for admission were served via mail on March 30, 2026. (Kozinski Decl., Ex. 1.) The deadline to respond was 30 days after service, plus five days for service via mail. (CCP § 1013 subd. (a).) Thus, responses were due on May 4, 2026. As of the date of the hearing on this motion, there is no evidence before the Court that Plaintiff has responded to the discovery requests. Thus, the motion is GRANTED.

Request for Sanctions

The Court must impose monetary sanctions against anyone—party, nonparty, or attorney—who unsuccessfully makes or opposes the motion, unless it finds that the person to be sanctioned acted with substantial justification or other circumstances make the imposition of the sanctions unjust. (CCP §§ 2030.290, subd. (c) [interrogatories], 2031.300, subd. (c) [demand to produce]; Sinaiko, supra, 148 Cal.App.4th at 404 [interrogatories and demand to produce].)

The Court must award sanctions when a party's response to request for admissions is untimely, and the discovering party makes a motion to deem the requests admitted. (CCP, § 2033.280, subd. (c); Appleton, supra, 206 Cal.App.3d at 635-636 [sanctions are mandatory].)

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

Even after a party provides discovery responses, a party can keep its motion on calendar and the court has authority to grant sanctions, even if it denies the motion to compel responses "as essentially unnecessary, in whole or in part." (Sinaiko, supra, 148 Cal.App.4th at 409.)

The burden is on the party subject to sanctions to show substantial justification or injustice. *Mattco Forge, Inc. v. Arthur Young & Co.* (1990, 2nd Dist.) 223 Cal.App.3d 1429, 1436.

Defendant requests sanctions in the amount of \$900. The amount requested is reasonable. Accordingly, the request for sanctions is GRANTED in the amount of \$900.

MOTION FOR SANCTIONS

CCP section 2023.030 permits California courts to impose monetary, issue, evidence, and terminating sanctions for discovery misuses, which are defined by CCP section 2023.010. Discovery sanctions "should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 793.) Moreover, "[d]iscovery sanctions must be tailored in order to remedy the offending party's discovery abuse, should not give the aggrieved party more than what it is entitled to, and should not be used to punish the offending party." (*Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1217.)

Terminating sanctions are drastic sanctions that should be imposed sparingly and only when it is clear that the party to be sanctioned has left no viable alternatives. (See *Dept. of Forestry & Fire. Prot. v. Howell* (2017) 18 Cal.App.5th 154, 191 [disapproved on other grounds].)

The court should consider the totality of the circumstances before ordering terminating sanctions, including (1) whether the conduct of the party was willful, (2) the detriment to the party propounding discovery, and (3) the number of formal and informal attempts to obtain the discovery. (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390.) The Court is not required to find that a party acted in bad faith before imposing terminating sanctions. (See *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 703.)

Defendant moves for an order finding Plaintiff in contempt, and for evidentiary or terminating sanctions for failure to comply with this Court's February 27, 2026 and April 10, 2026 orders that Plaintiff respond to Defendant's discovery requests and remit sanctions. (2/27/2026 Minute Order; 4/10/2026 Minute Order.) Defendant asserts that despite this Court's rulings, Plaintiff has failed to respond to the discovery requests or remit the Court ordered sanctions. (Semos Decl., ¶ 8.) The motion is unopposed, and thus there is no explanation for Plaintiff's failure to produce the discovery or comply with the sanctions previously ordered, nor has Plaintiff presented any argument against imposition of the requested sanctions.

The Court finds that Plaintiff's failure to respond to the discovery requests and failure to comply with the Court's orders requiring responses constitutes a misuse of the discovery process. Thus, the Court finds that monetary sanctions are warranted. Terminating sanctions are not appropriate here because there is no evidence before the Court that less severe sanctions would not produce compliance with the discovery rules. Terminating sanctions are an extreme remedy. The Court is not inclined to grant the ultimate sanction at this juncture.

However, the Court notes that Plaintiff's initial failure to respond to the discovery requests, followed by Plaintiff's subsequent failure to comply with the Court's orders, marks the beginning of a pattern of misuse of the discovery process. Continued violations are likely to establish a "history of abuse" justifying the imposition of more severe sanctions, including terminating sanctions. (See *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Defendant requests sanctions in the amount of \$1,530. The amount requested is slightly high given that the hearings on the motions are scheduled concurrently, require minimal preparation and can be attended remotely. The sanctions are adjusted accordingly. Sanctions are awarded as follows: The Court reduces attorney hours to 5 hours at \$210 per hour with total attorneys fees of \$1,050.

RULING:

Defendant's Motion to Deem Requests for Admissions Admitted is GRANTED. The admissions are deemed ADMITTED as true.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$900.00 (4.0 hours @ \$210.00/hour) [4.0 hours requested] plus \$60.00 in filing fees [Amount Requested \$900.00], which sum is to be awarded in favor of Defendant Nicholas Robert Fitts and against Plaintiff Heennssy Cruz payable within 15 days. (CCP, § 2033.280, subd. (c); CRC Rule 3.1348(a).)

Defendant's Motion for Contempt of Order, and Evidentiary or Termination Sanctions is GRANTED, in part. The request for monetary sanctions is GRANTED. The requests to hold Plaintiff in contempt and for terminating sanctions are DENIED.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$1,050.00 (5 hours @ \$210.00/hour) [7.0 hours requested] plus \$60.00 in filing fees [Amount Requested \$1,530.00], which sum is to be awarded in favor of Defendant Nicholas Robert Fitts and against Plaintiff Heennssy Cruz payable within 15 days. (CCP, § 2033.030, subd. (a).)

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by noon today in accordance with this ruling.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.